

26STCP00887 26STCP00887

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-18

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Case Number: 26STCP00887 Hearing Date: September 18, 2026 Dept: 833

The Westmoreland Law Firm, Case No. 26STCP00887

Hearing:

September 18, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

City of Compton Judge:

Joseph Lipner

Order Regarding

Discovery Motions

INTRODUCTION

Petitioner The Westmoreland Firm

("Petitioner") moves for two orders seeking further responses from Respondent City of Compton ("City") as to Petitioner's Request for Production of Documents. Petitioner also requests monetary sanctions against the City in the amount of \$5,460.00 (Set One) and \$5,460.00 (Set Two). The City opposes and requests attorneys fees in the amount of \$2,070.00 (Set One).

The Court DENIES both motions to

compel further discovery responses and orders Petitioner to pay attorneys fees of \$2,070.00, payable to the City in 30 days.

Petitioner moves for an order compelling the City to (1) produce its employee, Assistant City Manager Tamara Binns, for deposition within fifteen calendar days; (2) designate a person most qualified to testify on the City's behalf concerning each subject identified in Petitioner's second notice of deposition; (3) complete the PMK deposition within 15 calendar days. Petitioner also requests attorneys fees against the City in the amount of \$7,865.25. The City opposes.

The Court GRANTS the motion to compel the deposition of Binns, and GRANTS IN PART the motion to compel the deposition of the PMK. The Court denies attorneys fees.

PETITIONER'S MOTIONS

TO COMPEL FURTHER RESPONSES TO RFPDs, SET ONE AND SET TWO

A.

Procedural History

On March 4, 2026, Petitioner filed a verified petition for writ of mandate, seeking two categories of public records: (a) payment and disbursement records reflecting City payments to Petitioner for tax years 2023-2025, and (b) the City's outside counsel handbook/policies/procedures and billing/audit/payment practices for 2023-2025. (Petition, ¶ 2.)

On March 18, 2026, Petitioner sought Requests for Production of Documents ("RFPDs"), Set One. (Westmoreland Decl., ¶ 2.)

On April 28, 2026, the City served verified responses to RFPDs, Set One. (Westmoreland Decl., ¶ 4.)

On May 4, 2026, Petitioner sought RFPDs, Set Two. (Westmoreland Decl., ¶¶ 3-4.)

Petitioner filed two motions to compel further responses on July 6, 2026.

On

September 3, 2026, the City served verified responses to Set Two. (Welch Decl., ¶¶ 4–5.)

B.

Legal Standard

The California Public Records Act, Government Code § 7922.530, provides:

(a) Except

with respect to public records exempt from disclosure by express provisions of law, each state or local agency, upon a request for a copy of records that reasonably describes an identifiable record or records, shall make the records promptly available to any person upon payment of fees covering direct costs of duplication, or a statutory fee if applicable. Upon request, an exact copy shall be provided unless impracticable to do so.

“When

a party seeks pretrial discovery in a proceeding to enforce the California Public Records Act, ‘the trial court must determine whether the discovery sought is necessary to resolve whether the agency has a duty to disclose, and...additionally whether the request is justified given the need for an expeditious resolution.’” (County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 249 (County of San Benito).)

In

contrast with civil litigation, “the general scope of discovery in Public Records Act proceedings is limited to a narrow issue: whether the public agency has an obligation to disclose the records that the petitioner has requested.” (Id., at p. 254 [internal quotations removed].)

It

is appropriate for a Court to grant discovery requests if the requests are “tailored to understanding and assessing the reasonableness of the County’s ongoing search for responsive records.” (Id., at p. 257.)

C.

Analysis – RFPDs, Set One

C.C.P.

§ 2031.310, subd. (c) provides:

Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand for inspection, copying, testing, or sampling.

A

court has no power to entertain, let alone grant, an untimely motion. (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410 [after 45 days, a court is “without authority to rule on motions to compel [a further response] other than to deny them].)

The

City served its verified responses to RFP Set One on April 28, 2026. (Westmoreland Decl. ¶ 4; Exh. B.) WLF filed this motion on July 6, 2026, which is well over 45 days from service of the verified responses.

The

only way to extend the deadline to file a motion to compel further discovery responses is for the parties to agree in writing, and for the writing to include a specific new deadline. (Code Civ. Proc., § 2031.310, subd. (c).)

Counsel

for Petitioner says that she believed the parties' settlement discussions included “the deadline to file a motion concerning the City's deficient RPF responses.” (Westmoreland Decl., ¶ 12.) On reply, Petitioner submitted new evidence, which shows that the City suggested putting discovery on hand to see if they could resolve cases. (Westmoreland Supp. Decl., ¶ 4, Exh. G.)

The

problem for Petitioner is that this email does not satisfy the requirements of C.C.P. § 2031.31, subd. (c). Petitioner needed a writing that included an extension for filing a motion to compel further discovery responses and for the writing to include a specific new deadline. No specific deadline was included, so as a matter of law, the deadline was not continued.

Therefore,
this motion is untimely, and the Court has no authority to compel further
discovery responses.

Petitioner

contends that [a]ny timeliness objection should be rejected based on written
agreement, waiver, estoppel, and the City's own conduct." (Motion at 12:17–18.)
Regarding estoppel, the Court of Appeal has suggested that if a responding
party fails to raise timeliness and instead permits "the hearing to go
forward," the responding party might be estopped from later arguing timeliness.
(Sexton, *supra*, 58 Cal.App.4th at p. 1410, fn. 4.) That exception has no
application here: the City raises timeliness in this very opposition, before
any hearing on the merits of Petitioner's motion has occurred.

Even

if the Court reached the merits of the motion, Petitioner would still not
prevail. A petitioner in a public records act proceeding cannot use a motion to
compel to obtain the documents already sought by the underlying public records
request. (County of San Benito, *supra*, 96 Cal.App.5th at pp. 255-256.)

Requests

Nos. 11 and 12 seek "all DOCUMENTS" and "all ESI pertaining to YOUR outside
counsel policies, procedures, handbooks, and guidelines." (Westmoreland Decl.,
Exh. A.) This is awfully similar to the ultimate request in this CPRA case,
where Petitioner seeks the City's outside counsel
handbook/policies/procedures and billing/audit/payment practices for 2023-2025.
(Petition, ¶ 2.)

Request

No. 4 seeks the following:

All DOCUMENTS that support the amount of \$585,902.18
described in the 2025 1099-NEC that YOU issued to Petitioner.

Request

No. 5 seeks the following:

All DOCUMENTS pertaining to all payments of
Petitioner's invoices presented to YOU from January 1, 2019 to the present.

Request

No. 7 seeks the following:

All ESI that support the amount of \$585,902.18 described in the 2025 1099-NEC that YOU issued to Petitioner.

Request No. 8 seeks the following:

All ESI pertaining to all payments of Petitioner's invoices presented to YOU from January 1, 2019 to the present.

The

Court finds that these requests are substantially similar to the overall CPRA request, which seeks payments and disbursement records reflecting City payments to Petitioner for tax years 2023-2025.

There

is another problem with the other RFPDs. There is a clear legislative intent that CPRA actions be handled expeditiously. (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 290.) Because of this clear legislative intent, "the trial court has discretion to consider whether the petitioner has made an adequate showing that the discovery is likely to aid in the resolution of the particular issues presented in the proceeding." (*Ibid.*) Nothing in the separate statement for Requests Nos. 1, 2, 3, 6, 9, and 10 explain why those requests are necessary for addressing the ultimate question: whether the City has a duty to disclose.

Thus,

even on the merits, the Court would not compel further responses to RFPDs, Set One.

The

Court is required to impose sanctions on a party who unsuccessfully makes a motion to compel further responses unless the party can show they acted with substantial justification or circumstances would make the imposition of sanctions unjust. (Code Civ. Proc., § 2031.310, subd.

(h).)

There was no substantial justification for filing this

motion. The documents requested are beyond what is allowed in CPRA discovery and the motion was filed late. Therefore, the Court awards sanctions of \$2,070.00, as requested by the City.

D.

Analysis – RFPDs, Set Two

After

the filing of the motion, the City filed responses to Set Two, meaning this motion is now moot. (Welch Decl., ¶¶ 4–5.)

A

party who fails to serve a timely response to a demand for inspection waives any objection, including privilege or work product, “unless the court, on motion, grants relief from this waiver” upon a showing that the party “has subsequently served a response that is in substantial compliance” with the applicable sections, and that “the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2031.300, subd. (a).)

Here,

the Court finds that the City acted with mistake, inadvertence or neglect. Three days before the June 8, 2026, deadline to serve responses to Set Two, the parties, including Petitioner, jointly filed a Joint Notice of Settlement of this very action, and the City reasonably believed the discovery dispute had been resolved along with the rest of the case.

On

the merits, the Court cannot compel responses to RFPDs, Set Two. Petitioner does not explain anywhere in the briefing how the requests in Set Two address the ultimate issue in a CPRA case: whether the City has a duty to disclose the documents at issue in the underlying CPRA request.^[1]

Simply put, a CPRA request is not an opportunity to conduct broad discovery.

Therefore,

the motion to compel further responses to RFPDs, Set Two is denied.

The

City does not seek sanctions in connection with Petitioner’s making of a motion to compel further discovery responses to RFPDs, Set Two. Therefore, the Court

will not award any sanctions.

PETITIONER's MOTION

TO COMPEL THE DEPOSITION OF TAMARA BINNS AND THE CITY'S PMK

A.

Legal Standard

C.C.P.

§ 2025.450, subd. (a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

C.C.P. § 2025.450, subd. (b) provides:

The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

B.

Analysis

The

PMK notice identified seven deposition topics: (1) the City's public records request portal; (2) California Public Records Request No. P008110-021826; (3) payments made to WLF; (4) all 1099s issued to WLF; (5) communications between WLF and the City regarding invoices, payments, 1099s, and any other tax matters; (6) documents exchanged between WLF and the City regarding the same; and (7) the City's outside counsel handbooks from January 1, 2010 to present.

(Motion, Exh. D at p. 2.)

Deposition

Topics 3 through 7 do not bear on whether the City has a duty to disclose. As the Court discussed in its analysis of the Motions to Compel Further, discovery in a CPRA case must address this question, and this question alone.

Deposition

Topics 1 and 2 do have the potential to address whether the City has a duty to disclose records. Accordingly, they are proper subjects for a PMK deposition.

The

Court also concludes that the Binns deposition should move forward. Contrary to what the City indicates, Binns has previously verified responses to Petitioner's Form Interrogatories, Requests for Admission and Requests for Production. (Westmoreland Supp. Decl., ¶ 4.) The Court also disagrees with the City's contention that Binns can get out of a deposition because she is at the apex of a governmental hierarchy. In the case cited in the opposition, *Liberty Mutual Insurance Co. v. Superior Court* (1992) 10 Cal.App.4th 1282 the executive declared that he lacked involvement and knowledge. (*Id.*, at pp. 1284-1288.) By contrast, the evidence before the Court suggests Binns does have awareness of some of Petitioner's requests.

The

City also never filed a protective order under C.C.P. § 2025.420, subd. (a), so that issue is not properly before the Court. The Court does not find the City's argument that there was a lack of a meet-and-confer persuasive. The evidence suggests that the parties did engage in a meet-and-confer process. (Westmoreland Supp. Decl., ¶¶ 8-9.)

The

City urges the Court to stay the Binns deposition until after the PMK deposition, so Petitioner is not engaged in unreasonably cumulative and duplicative discovery. The Court declines to do that. The Court urges the parties to be reasonable as to the sequencing of the depositions. However, based on the record, the Court does not think two depositions counts as "unreasonably cumulative" or "duplicative" discovery.

C.C.P.

§ 2025.450, subd. (h) requires the Court to impose sanctions if the Court

grants a motion to compel discovery, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Petitioner

requests \$7,865.25 in attorneys fees, with Petitioner's counsel billing \$1,200/hr. (Westmoreland Decl., ¶ 24.) This is not reasonable for a CPRA case, where the Court normally sees hourly rates of between \$300 and \$600/hr.

The

Court agrees that the City acted with substantial justification in opposing the PMK deposition, especially because many of the items Petitioner wants to depose the PMK on are not relevant to a CPRA action.

The

Court also agrees that the City acted with substantial justification in opposing the Binns deposition because of the City's "apex" argument. While the Court rejects the argument, is it a reasonable basis to oppose.

Therefore,

the Court denies attorney's fees.

CONCLUSION

The Court DENIES both motions to compel further discovery responses and awards attorneys fees of \$2,070.00, payable from Petitioner to the City in 30 days.

The Court GRANTS the motion to compel the deposition of Binns, and GRANTS IN PART the motion to compel the deposition of the PMK. The Court denies attorneys fees.

IT IS SO ORDERED.

Dated: September
18, 2026

Joseph

Lipner

Superior
Court Judge

[1]

Unlike RFPDs, Set One,
Petitioner did not submit a Separate Statement for RFPDs, Set Two.